

5). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Special Interrogatories 14, and 16-23

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

**RUBY EVANS vs. WINDSOR VALLEJO CARE; ET AL.
Case No. FCS055755**

Motion to Tax Costs

TENTATIVE RULING

Defendants' motion to tax costs is granted in part and denied in part.

The court taxes the fees sought for BlackLight Consulting and Shore Law, LLC. These are labeled in Plaintiff's memorandum of costs as expert fees, which is consistent with the description of the work performed (Decl. of Chisholm, ¶¶ 10-11), but fees of experts not ordered by the court are expressly disallowed. (Code Civ. Proc. § 1033.5(b)(1).) Alternatively, the costs can be construed as "[i]nvestigation expenses in preparing the case for trial", which are also expressly disallowed. (Code Civ. Proc. §1033.5(b)(2).)

The court taxes the fees sought for ordinary witnesses Natasha Younger, Chaterine Mithamo, and Vanessa Glenn to the extent they exceed the amounts authorized by Government Code section 68093. Ordinary witness fees are allowed only "pursuant to Section 68093 of the Government Code." (Code Civ. Proc. § 1033.5(a)(7).) A witness who testifies as a percipient witness is entitled to only ordinary witness fees. (*Baker-Hoey v. Lockheed Martin Corp.* (2003) 111 Cal.App.4th 592, 602.) Plaintiff shall file with the court a declaration establishing the number of days and the mileage calculations for these witnesses.

The court taxes the \$11,413.32 in fees claimed to conduct a mock trial. The court finds that these fees were not reasonably necessary for the conduct of the litigation, but were merely convenient or beneficial to its preparation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes all costs claimed for counsels' travel to attend the trial, including lodging, meals, a remote office, "trial supplies", and WiFi. Given the proximity of counsels' offices in Sacramento and San Francisco, the court finds that these costs were not reasonably necessary for the conduct of the litigation, but were instead merely convenient and beneficial to the conduct of the litigation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes courier fees claimed for the jury deposit fees, the cellphone, and the lodgment of transcripts. Plaintiff has not presented sufficient evidence of the

reasonable necessity for these fees, when compared to the probable cost and availability of alternatives. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 132.)

The court taxes the costs of outside attorneys hired by counsel to oppose a motion to extend the automatic stay to non-debtor defendants and to perform “targeted research and briefing” on the issue of punitive damages. Plaintiff does not explain why Plaintiff’s retained team of attorneys could not do this work or why these attorneys fees could not be presented as part of Plaintiff’s motion for attorneys’ fees. Plaintiff has not established these fees were reasonably necessary. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes the costs for biography services. The court finds that these expenses are non-recoverable “[i]nvestigation expenses in preparing the case for trial.” (Code Civ. Proc. § 1033.5(b)(2).)

In all other respects, the motion is denied.

The trial technician’s fees are allowable as “the electronic presentation of exhibits, including costs of rental equipment and electronic formatting”. (Code Civ. Proc. § 1033.5(a)(13).)

“Mediation is fundamental to the conduct of litigation as it encourages the parties to settle their disputes before trial and exposes parties who fail to agree to a reasonable settlement proposal to the risk of a discretionary court determination that they should pay their opponent’s share of the failed mediation.” (*Gibson v. Bobroff* (1996) 49 Cal.App.4th 1202, 1209.) That the mediation was unsuccessful does not render it unnecessary. (*Id.* at 1204.)

Courier costs for the delivery of the hard drive have been adequately justified by the need for rush processing after Defendants failed to produce it during normal discovery. (Decl. of Chisholm, ¶ 20.) Given Witness Evans’ inability to transport himself without the use of a mobility scooter, the costs of rental were reasonably necessary. (*Id.* at ¶ 24.) The biography services to create a “narrative account” of Plaintiff’s life for the express purpose of presenting damages evidence before the jury were reasonably necessary. (*Id.* at ¶ 25.)

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